

2NNCV00616 2NNCV00616

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-08-05

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=ALH%2CV%2C08%2F05%2F2026

Source SHA-256: 961b014be0566270d7a30a795dcbec50c9123cfbbf0618dffadfc8595f3b51a

Case Number: 2NNCV00616 Hearing Date: August 5, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

NORIK HARUTYUNYAN, GARIK

AROUTIOUNIAN,

Plaintiffs,

vs.

KHACHIK TARAKCHYAN, and DOES

1-100, inclusive,

Defendants.

Case

No.:

2NNCV00616

Hearing

Date:

August

5, 2026

Time:

8:30 a.m.

[Tentative]

Order RE:

MOTION TO COMPEL PLAINTIFF NORIK

HARUTYUNYAN'S FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE

MOTION TO COMPEL PLAINTIFF NORIK

HARUTYUNYAN'S FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

MOTION TO COMPEL PLAINTIFF NORIK

HARUTYUNYAN'S FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE

MOVING PARTY: Defendant Khachik Tarakchyan

RESPONDING PARTY: None.

The Court

considered the moving papers filed in connection with the instant motion.

BACKGROUND

On March 29, 2024, Plaintiffs Norik Harutyunyan ("Harutyunyan") and Garik Aroutiounian ("Aroutiounian") (collectively, "Plaintiffs") brought this action against Defendant Khachik Tarakchyan ("Tarakchyan"), alleging causes of action for (1) motor vehicle negligence and (2) general negligence. The causes of action arise out of a motor vehicle accident occurring on the 134 Freeway near the San Fernando Exit in Glendale, California, wherein Tarakchyan allegedly rear-ended Plaintiffs.

On October 1, 2024, the Court found this action related within the meaning of California Rules of Court, rule 3.300(a), to case No. 24NNCV02368 and designated the instant matter as the lead case.

On April 8, 2026, Tarakchyan filed the instant motions to compel further responses to Harutyunyan's Requests for Production of Documents ("RFPs"), Form Interrogatories, Set One ("Form Rogs."), and Special Interrogatories, Set One ("SROGs").

Harutyunyan did not file an opposition.

LEGAL STANDARD

A.

Requests for Production

Any party may obtain any discovery of information, documents, land, property or electronically stored information so long as the discoverable matter is not privileged and is relevant to the subject matter and can lead one to admissible evidence. (Code Civ. Proc., § 2017.010.) A party can demand the production of documents that is in the "possession, custody, or control of the party on whom the demand is made." (Code Civ. Proc., § 2031.010, subd. (c).) If a court determines the scope of discovery imposes a burden, causes great expense or is intrusive, and such outweighs the likelihood that the discoverable information sought will garner admissible evidence, the court shall limit the scope of discovery. (Code Civ. Proc., § 2017.020.)

When responses to demands for production of documents are deficient, the propounding party may file a motion to compel further responses. (Code Civ. Proc., § 2031.310, subd. (a).) The motion to compel further responses may be brought when the responses contain: (1) "a statement of compliance when the demand is incomplete;" (2) "answers that are inadequate, incomplete or evasive;" or (3) "an objection to a particular request is without merit or too general." (Ibid.)

A motion to compel further responses must set forth specific facts showing good cause justifying the discovery sought by the demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) "To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (Digital Music News LLC v. Superior Court (2014) 226 Cal. App. 4th 216, 224). A motion to compel further responses must be

accompanied by a meet-and-confer declaration in compliance with Code of Civil Procedure section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(2).)

B.

Interrogatories

Within 30 days after service of interrogatories, the responding party must serve responses unless otherwise stipulated or ordered. (Code Civ. Proc., § 2030.260, subd. (a).)

Code of Civil Procedure section 2030.300 provides that a propounding party may move for an order compelling further responses if:

(1) an answer is evasive or incomplete;

(2) the exercise of option to produce documents is unwarranted or inadequate; or

(3) an objection is without merit or too general.

(Code Civ. Proc., § 2030.300, subd. (a).)

If a party fails to timely respond, objections are waived unless the court relieves the waiver upon a showing of mistake, inadvertence, or excusable neglect and a subsequently served compliant response. (Code Civ. Proc., § 2030.290.)

A motion to compel further responses must be brought within 45 days of service of verified responses. (Code Civ. Proc., § 2030.300, subd. (c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.)

DISCUSSION

A. Timeliness

On December 12, 2025, Tarakchyan served the RFPs, SROGS, and Form Rogs. on Harutyunyan. On February 20, 2026, Harutyunyan served responses. Tarakchyan had 45 days, plus two

additional days for electronic service (Code Civ. Proc., § 1010.6, subd. (a)(3)(B)), to file motions to compel further responses. Tarakchyan timely filed on April 8, 2026.

B.

Separate Statement

Tarakchyan filed separate statements in compliance with rule 3.1345(a).

C. Meet

and Confer

A motion to compel further responses must be accompanied by a meet and confer declaration showing a reasonable and good faith effort to resolve the dispute. (Code Civ. Proc., § 2016.040; § 2030.300, subd. (b)(2).)

Counsel met and conferred via email on March 2, 2026 and sent a detailed deficiency letter on March 12, 2026. No supplemental responses were provided.

Accordingly, the Court finds the meet and confer requirement satisfied.

D. Requests

for Production

Tarakchyan seeks further responses to RFPs Nos. 1, 2, 6, 7, 8, 9, 12, 13, 15, 21, 23, 27, and 28.

RFP No. 1

RFP No. 1 seeks documents from health care providers who examined, consulted with, or treated Harutyunyan within the five years preceding the subject incident concerning the same body parts Harutyunyan claims were injured in the accident.

The Court finds the request relevant to Harutyunyan's claimed injuries and damages. By placing his physical

condition at issue, Harutyunyan has waived his privacy rights to the extent necessary to permit discovery of medical information directly relevant to the injuries alleged. The request is appropriately limited in time and subject matter and does not seek Harutyunyan's entire medical history.

Motion granted.

RFP No. 2

RFP

No. 2 seeks billing records and statements for treatment relating to the same body parts allegedly injured in the accident during the preceding five-year period.

For the same reasons discussed with respect to RFP No. 1, the Court finds the request reasonably tailored and relevant to issues of causation, preexisting condition, and damages.

Motion granted.

RFP

No. 6

RFP

No. 6 seeks photographs depicting injuries allegedly sustained in the subject accident.

Harutyunyan responded that he is unable to comply because responsive documents are not within his possession, custody, or control. However, the response does not satisfy the requirements of Code of Civil Procedure section 2031.230 because it fails to specify whether the documents never existed, have been lost or destroyed, or identify any person or entity believed to possess them.

Motion granted.

RFP

No. 7

RFP

No. 7 seeks documents pertaining to loss of earnings resulting from the subject accident.

Harutyunyan

responded that the request seeks premature disclosure of expert opinion and attorney work product. The Court finds the request relevant to Harutyunyan's claimed damages and does not require expert opinion or disclosure of attorney work product.

Motion

granted.

RFP No. 8

RFP

No. 8 seeks documents pertaining to the claim for loss of earning capacity resulting from the incident.

Harutyunyan

responded that the request seeks premature disclosure of expert opinion and attorney work product. The Court finds the request relevant to Harutyunyan's claimed damages and does not require expert opinion or disclosure of attorney work product.

Motion

granted.

RFP

No. 9

RFP

No. 9 seeks all documents supporting any missed time from Harutyunyan's employment.

The Court agrees that evidence of lost time from work is relevant to damages. However, the request contains no time limit and is therefore overbroad

on its face. Defendant has not demonstrated good cause for production without a reasonable limitation in scope.

Motion denied.

RFP Nos. 12 and 13

RFP Nos. 12 and 13 seek CT scan and MRI reports relating to the same body parts allegedly injured in the accident during the five years preceding the incident.

The Court finds these requests directly relevant to the issues of causation, preexisting condition, and damages. The requests are narrowly tailored and do not improperly seek unrelated medical information.

Motion granted.

RFP No. 15

RFP

No. 15 seeks social media postings concerning the subject incident from August 2, 2023, to the present.

The

Court finds the request reasonably tailored to obtain information concerning Harutyunyan's allegations, claimed injuries, and the circumstances of the accident. While Harutyunyan maintains a privacy interest in social media content, that interest is limited where the request is narrowly directed to postings concerning the incident itself. Tarakchyan has demonstrated the relevance of such materials, and the request is not unduly burdensome.

Motion
granted.

RFP

No. 21

RFP

No. 21 seeks documents relating to liens asserted by medical providers or

governmental entities arising from treatment
allegedly necessitated by the accident.

The Court finds the requested
materials relevant to the nature and amount of Harutyunyan's claimed medical
damages and any reimbursement obligations associated with those damages.

Motion granted.

RFP

No. 23

RFP

No. 23 seeks documents relating to claims submitted to insurance
carriers arising from the subject incident.

The Court finds such materials
relevant because they concern the same occurrence at issue in this action and
may contain statements, representations, or information concerning Harutyunyan's
alleged injuries and damages.

Motion granted.

RFP

No. 27

RFP

No. 27 seeks documents concerning prior lawsuits, insurance claims, and workers'
compensation claims during the preceding ten years.

The Court finds the request
relevant insofar as prior claims may bear on Harutyunyan's medical history,
prior injuries, damages, and credibility. The request is limited to a ten-year
period and is not rendered objectionable merely because responsive materials
may include information concerning prior injuries.

Motion granted.

RFP

No. 28

RFP

No. 28 seeks Harutyunyan's W-2 forms and Forms 1099 from 2016 to the present.

California recognizes a qualified privilege protecting tax-return information. Tarakchyan has not demonstrated that an exception to that privilege applies or that the information cannot be obtained through less intrusive means. The Court therefore finds Harutyunyan's objection well taken.

Motion denied.

E. Special
Interrogatories

Tarakchyan seeks a further response to SROG Nos. 2, 3, 5, 6, 7, 8, 9, 10, 11, 12, 14, 15, 18, 21, 22, 23, 24 and 25.

SROG No. 2

Prior medical provider information is relevant given claimed injuries.

Motion granted.

SROG No. 3

Harutyunyan's social security number is not relevant and implicates privacy concerns.

Motion denied.

SROG No. 5

This interrogatory is duplicative and overbroad as phrased.

Motion denied.

SROG No. 6

Employment history is relevant
to claimed loss of earning capacity.

Motion granted.

SROG No. 7

The interrogatory seeks
claimed damages, which is permissible discovery.

Motion granted.

SROG No. 8

The interrogatory is overbroad
and ambiguous as phrased.

Motion denied.

SROG No. 9

The interrogatory is vague and
compound.

Motion denied.

SROG No. 10

The interrogatory seeks prior
litigation history relevant to credibility.

Motion granted.

SROG No. 11

The interrogatory is overbroad
as phrased.

Motion denied.

SROG No. 12

The interrogatory seeks
collateral source information not discoverable under the circumstances.

Motion denied.

SROG No. 14

The interrogatory is only
partially answered.

Motion granted.

SROG No. 15

The interrogatory does not
require a narrative response and is proper.

Motion granted.

SROG No. 18

The interrogatory is relevant
to damages and benefits potentially recovered.

Motion granted.

SROG No. 21

Primary care physician
information is relevant to claimed injuries.

Motion granted.

SROG Nos. 22 & 23

Employment information is
relevant to loss of earning capacity.

Motions granted.

SROG No. 24

The interrogatory is relevant
to the claimed injuries.

Motion granted.

SROG No. 25

The interrogatory seeks
information not adequately provided elsewhere.

Motion granted.

F. Form
Interrogatories

Tarakchyan seeks further
responses to Form Rogs. Nos. 1.1, 2.6, 6.3, 6.6, 6.7, 7.1, 7.3, 8.1, 10.1,
10.3, 11.1, 11.2, 14.1, 20.2, 20.6, 20.9, 20.10, and 20.11.

Form Rog. No. 1.1

The interrogatory is only
partially answered.

Motion granted.

Form Rog. No. 2.6

This Form Rog. is not an
invasion of privacy.

While the interrogatory
implicates privacy interests, such interests are not absolute in a personal

injury action and must be balanced against the need for discovery. The information is relevant to damages, including loss of earning capacity.

Motion granted.

Form Rog. No. 6.3

The response is incomplete and fails to provide required detail regarding nature, duration, and severity of complaints.

Motion granted.

Form Rog. No. 6.6

The response does not provide requested information regarding medical services.

Motion granted.

Form Rog. No. 6.7

The response improperly relies on document production rather than providing substantive answers.

Motion granted.

Form Rog. No. 7.1

The response appears to be a copy and paste from Aroutiounian's Form Rog. responses, as Aroutiounian is the owner of the vehicle in question. Therefore, clarification is required.

Motion granted.

Form Rog. No. 7.3

No substantive response provided.

Motion granted.

Form Rog. No. 8.1

The interrogatory seeks
claimed loss of earning capacity, which is relevant to damages.

Motion granted.

Form Rog. Nos. 10.1
& 10.3

The interrogatories are
narrowly tailored to injuries at issue and do not seek the entirety of medical
history.

Motions granted.

Form Rog. Nos. 11.1
& 11.2

The interrogatories seek
prior personal injury and workers' compensation claims, not medical
records.

Motions granted.

Form Rog. Nos. 12.3

The Court notes that
Tarakchyan fails to include Form Rog. No. 12.3 in his separate statement.
However, the Court proceeds to analyze the interrogatory. Work product
objections are proper in principle; however, the response improperly refers
solely to document production without substantive response.

Motion granted.

Form Rog. No. 14.1

The response is incomplete
and fails to identify specific statutory violations
alleged.

Motion granted.

Form Rog. No. 20.2

The response fails
to provide required vehicle ownership
and occupant information.

Motion granted.

Form Rog. No. 20.6

The response does not
adequately describe traffic control devices or intersection conditions.

Motion granted.

Form Rog. Nos. 20.9 &
20.10

The responses are incomplete
and fail to provide information past Aroutiounian's vehicle.

Motions granted.

Form Rog. No. 20.11

No responsive information
provided.

Motion granted.

G. Sanctions

Code of Civil Procedure
section 203.030 authorizes monetary sanctions for misuse of the discovery

process.

Sanctions are warranted given the failure to provide proper responses and failure to oppose the motion.

Counsel requests \$1,490.00 per motion for the RFPs motion and Form. Rgs. motion and \$1,357.50 for the SROGs motion, based on an hourly rate of \$220.00 and estimated time of three hours per motion. The Court notes that the \$1,357.50 requested for the SROGs motion appears to be a miscalculation. The Court finds the hourly rate reasonable but reduces the time claimed due to overlap between motions and absence of oppositions.

The Court awards sanctions as follows: 3 hours drafting (one hour per motion), 1 hour appearance, and a filing fee of \$60.00 for each motion for a total of \$1,060.00. Sanctions are imposed jointly and severally against Harutyunyan and counsel of record.

CONCLUSION

Based on the foregoing, the Court GRANTS Tarakchyan's motion to compel further responses to Requests for Production of Documents Nos. 1, 2, 6, 7, 8, 12, 13, 15, 21, 23, and 27.

The Court DENIES Tarakchyan's motion to compel further responses to Requests for Production of Documents Nos. 9 and 28.

The Court GRANTS Tarakchyan's motion to compel further responses to Special Interrogatories Nos. 2, 6, 7, 10, 14, 15, 18, 21, 22, 23, 24, and 25.

The Court DENIES Tarakchyan's motion to compel further responses to Special Interrogatories Nos. 3, 5, 8, 9, 11 and 12.

The Court GRANTS Tarakchyan's motion to compel further responses to Form Interrogatories Nos. 1.1, 2.6, 6.3, 6.6, 6.7, 7.1, 7.3, 8.1, 10.1, 10.3, 11.1, 11.2, 14.1, 20.2, 20.6, 20.9, 20.10, and 20.11.

Harutyunyan shall provide verified further responses without objection, except where specifically sustained, within 20 days of notice of this order. Total monetary sanctions, for all three motions, are imposed

against Harutyunyan and his attorney of record, jointly and severally, in the amount of \$1,060.00, payable to counsel for Tarakchyan within 20 days of notice of this order.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 5, 2026

Sarah
J. Heidel

Judge
of the Superior Court